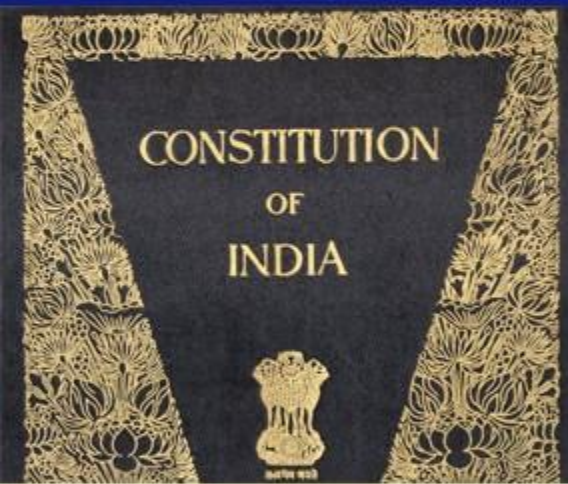


INDIAN POLITY



MODULE - 1

**CONSTITUTION
WHY AND HOW**

WHY DO WE NEED A CONSTITUTION?



- What is a Constitution?
- What are its function?
- What role does it perform in the society?
- How does a Constitution relate to daily existence of each and every individual?

FUNCTION NO. 1

CONSTITUTION ALLOWS COORDINATION AND ASSURANCE

- 1** Consider a large group of people having different religious allegiances. Some are Hindus, some are Muslims, some are Christians and some, perhaps, profess no religions at all. Some can be rich and some can be poor.

We were all humans until,



Race Disconnected us, Religion separated us,
Politics divided us, and Wealth classified us.

- 2** Should these group of people be allowed to discriminate against any of its members?
- 3** Such a group has **lot of diversity between them** but still they have to live together in the society.
- 4** They are dependent on each other in various ways. They **require cooperation of each other.**

FUNCTION NO. 1

CONSTITUTION ALLOWS COORDINATION AND ASSURANCE

5 When will the group be able to live together peacefully?

The answer to that perhaps is that they can live together if they can agree on some **basic rules**.

6 Why will the group need certain basic rules?

This is probably because **every individual would be insecure** because they would not know what the other members of the group could do to each other. Hence, there would be a lot of insecurity.

7 Formulating set of rules and saying that these rules are legally enforceable gives an **assurance** to everybody that others will also follow these rules certainly.

Hence, the first function of the Constitution is to provide a set of basic rules that allow for minimal coordination amongst the members of the society.

SPECIFICATION OF DECISION MAKING POWERS

- 1** A Constitution is defined as a body of Fundamental Principles according to which a State is governed or constituted.
- 2** But what should these fundamental rules be? And what makes them fundamental?
- 3** The Constitution has to provide answers to these questions. It specifies the basic allocation of power in a society.
- 4** It decides who gets to decide what the laws will be. For example, In a Monarchical Constitution, Monarch decides; In some Constitution like the old Soviet Union a single party was given the power to decide. But in Democratic Constitution, broadly speaking, the people get to decide.
- 5** **How should the people decide?**
Should they decide directly or should the people elect representatives and act through representatives?

SPECIFICATION OF DECISION MAKING POWERS

5 How should these representatives be elected?
The Indian Constitution answers these questions by providing for a parliament, which gets to decide the laws and the policies.

6 This Parliament is itself to be organized in a particular manner which is again decided by the constitution.

7 This is another function of Constitution. It is an authority that constitutes the Government in the first place.

Thus, the second function of the Constitution is to specify who has the power to make decisions in a society i.e it decides how the Government will be constituted

LIMITATIONS ON THE POWERS OF THE GOVERNMENT

- 1** Let us consider that the Government has been created and it is passing laws which are totally unfair.
- 2** Let us assume that it prohibited you from practicing your religion or it says that you are not free to sing certain songs or you are not allowed to practice a certain profession. In such cases, individual's liberty have been encroached by the Government.
- 3** Here Constitution comes into play by limiting the power of the Government.
- 4** The most common way of limiting the power of the Government is to specify certain fundamental rights that all of us possess as citizens and which no such Government can ever be allowed to violate.

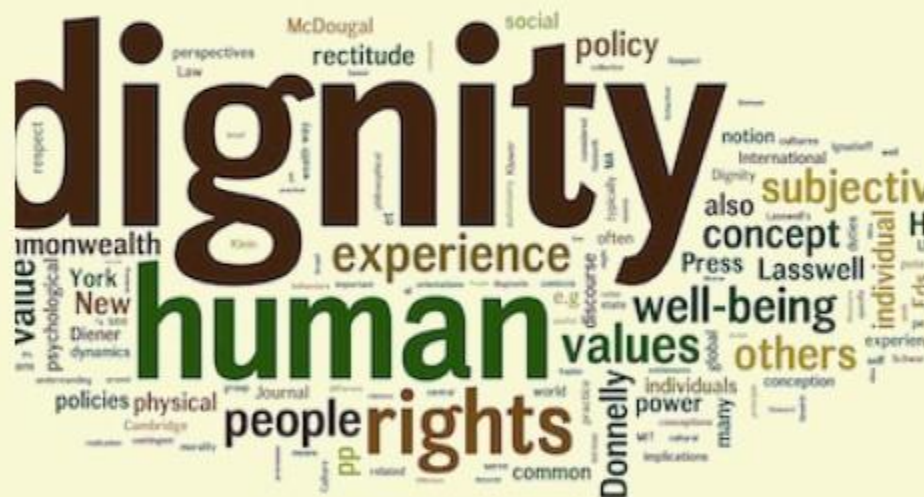
So, the third function of the Constitution is to set some limits on what the Government imposes on its citizens. These limits are fundamental in the sense that the Government can never trespass them.

ASPIRATIONS AND GOALS OF A SOCIETY



- 1 Most of the older Constitutions limited themselves largely to allocating decision making powers and setting some limits to the Government's power.
- 2 However, the Indian Constitution is the finest example as it provides for an enabling framework for the Government to do certain positive things i.e. to express the aspirations and goals of the society.
- 3 It take some positive measure to overcome the inherent forms of inequality or deprivation prevalent in the society.

ASPIRATIONS AND GOALS OF A SOCIETY



- 4 The framers of Indian Constitution thought that each individual in the society should have all that is necessary for them to lead a **life of minimum dignity and social self respect**.
- 5 These provisions have the support of the Preamble in our Constitution and these provisions are found in the **sections of Fundamental Rights the Directive Principles of State Policy**.

The fourth function of the Constitution is to enable the Government to fulfill the aspirations of a society and create conditions for a just society.

FUNCTION NO. 5

FUNDAMENTAL IDENTITY OF PEOPLE

- 1** Finally and perhaps even most importantly, the **Constitution expresses the fundamental identity of a people.**
- 2** This means the **people as a collective entity come into being only through the basic Constitution.**
- 3** It is by agreeing to a basic set of norms about how one should be governed and who should be governed that one forms a collective identity.
- 4** One has many sets of identities that exist prior to the Constitution. But by agreeing to certain basic norms and principles one constitutes one's basic political identity.
- 5** The Constitution also gives oneself a moral identity.
- 6** The Constitution **sets authoritative constraints** upon what one may or may not do. It defines the fundamental values in a society that we may not trespass.

THE AUTHORITY OF CONSTITUTION



- 1** In most countries the Constitution is a compact document that comprises a number of articles about the State, specifying that how State is to be constituted and what norms it should follow.
- 2** But, some countries like UK do not have one single document that can be called the Constitution rather they have a series of documents and decisions that are taken collectively to be known as their Constitution.
- 3** The crucial question is: **How effective is a Constitution? What makes it effective?** Making a Constitution effective depends upon many factors which are listed below.

THE AUTHORITY OF CONSTITUTION

FACTOR NO. 1

MODE OF PROMULGATION

I In many countries constitutions **remain defunct because they are crafted by military leaders or leaders who are not popular** and do not have the ability to carry the people with them.

II The most successful Constitutions, like India, South Africa and the United states are Constitutions which were **created in the aftermath of popular national movements**.

III The Indian constitution drew enormous legitimacy from the fact that it was drawn up by people who enjoyed immense public credibility, who had the capacity to negotiate and command the respect of wide cross section of people. Therefore the **authority of the people, who enact the Constitution helps determine the success of the Constitution**.



THE AUTHORITY OF CONSTITUTION

FACTOR NO. 2

THE SUBSTANTIVE PROVISION OF A CONSTITUTION

- 1** It is the hallmark of successful Constitution that it gives everyone in the society some reason to go along with its provisions.
- 2** The Constitution that allows for permanent majorities to oppress the minority groups within the society would give minorities no reason to go along with the Constitution or a Constitution that systematically privileges some members at the expense of others in a society would seize to command allegiance.
- 3** If any group feels their identity is being curbed they will have no reason to abide by the Constitution
- 4** No Constitution by itself achieves “perfect justice”, but it has to convince people that it provides a framework for pursuing “basic justice”.

THE AUTHORITY OF CONSTITUTION

BALANCED INSTITUTIONAL DESIGN

FACTOR NO. 3

- 1** Constitutions are often subverted not by the people but by the small groups, who wish to enhance their own power
- 2** One way of intelligent designing of a Constitution is to ensure that no single institution acquires monopoly of power.
- 3** This is done by fragmenting power across different institutions like the legislature, executive and the judiciary and even among independent statutory bodies like the election commission.
- 4** This ensures that even if one institution wants to subvert the Constitution others can check its transgressions.

THE AUTHORITY OF CONSTITUTION

BALANCED INSTITUTIONAL DESIGN

FACTOR NO. 3

- 5 An intelligence system of checks and balances has facilitated the success of Indian Constitution
- 6 Constitution is neither too rigid that it is likely to break under the weight of change nor it is too flexible, which will give no security, predictability or identity to its people.
- 7 Successful Constitutions strike the right balance between preserving core values and adapting to new circumstances.
- 8 The Indian Constitution by striking a balance between the possibility to change the provisions and the limits on such changes it has ensured that it will survive as a document respected by the people. This is why the Indian constitution is otherwise known as a living document.

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